

V.Subramaniyan vs P.Murugeshwari @ Muthamizhselvi on 26 February, 2025

Author: G.R.Swaminathan

Bench: G.R.Swaminathan

C.M.A(MD)

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved On : 31.01.2025

Pronounced On : 26.02.2025

CORAM

THE HONOURABLE MR.JUSTICE G.R.SWAMINATHAN
AND
THE HONOURABLE MS.JUSTICE R.POORNIMA

C.M.A(MD) Nos.446 & 447 of 2022

V.Subramaniyan

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Vs.

P.Murugeshwari @ Muthamizhselvi

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Prayer in C.M.A.(MD)No.446 of 2022: Civil Miscellaneous Appeal filed under Section 28 of the Hindu Marriage Act, 1955, to set aside Judgment and decree dated 21.02.2022 in H.M.O.P.No.100 of 2020 on the file of the Family Court, Karur and allow the above appeal.

Prayer in C.M.A.(MD)No.447 of 2022: Civil Miscellaneous Appeal filed under Section 28 of the Hindu Marriage Act, 1955, to set aside Judgment and decree dated 21.02.2022 in H.M.O.P.No.11 of 2021 on the file of the Family Court, Karur and allow the above appeal.

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For Appellant	: Mr.V.Muthukamatchi
For Respondent	: Mr.H.Mahendran
(in both C.M.As)	

COMMON ORDER

(Order of the Court was made by G.R.SWAMINATHAN, J.) Heard both sides.

2. The appellant V.Subramaniyan got married to P.Murugeswari @ Muthamizhselvi on 06.02.2011 as per Hindu rites and customs. The appellant is a practicing lawyer. The respondent is employed as Assistant Professor in English in Government College. The appellant filed H.M.O.P.No.11 of 2021 on the file of the Family Court, Karur for dissolving the marriage. A male child Vaitheeswaran was born through the wedlock on 08.11.2011. The respondent / wife filed H.M.O.P.No.100 of 2020 for restitution of conjugal rights. Both HMOPs were tried together. The appellant examined himself as P.W.1. One Manavalan / relative was examined as P.W.2. Ex.P1 to Ex.P15 were marked. Wife examined herself as D.W.1. Two other witnesses were examined on her <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 side. Ex.R1 to Ex.R13 were marked on the side of the respondent. After considering the evidence on record, the trial Court allowed HMOP filed by wife and dismissed HMOP filed by the husband. Aggrieved by the dismissal of H.M.O.P.No.11 of 2021, C.M.A.(MD)No.447 of 2022 has been filed. As against the order made in H.M.O.P.No.100 of 2020, C.M.A.(MD)No.446 of 2022 has been filed.

3. The learned counsel appearing for the appellant reiterated all the contentions set out in the memorandum of grounds of appeal. The learned counsel submitted that the appellant had convincingly established that the wife was guilty of cruelty as well as desertion. According to the learned counsel, the court below had not correctly appreciated the evidence on record. He added that the parties are remaining separate for several years and that this itself is ground enough to grant the relief of divorce. He called upon this Court to bear in mind the fact that the relationship between the parties has irrevocably broken down. He called upon this Court to set aside the impugned Judgment and allow both the appeals.

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4. Per contra, the learned counsel appearing for the respondent submitted that the impugned Judgment is well reasoned and that it does not call for interference.

5. We carefully considered the rival contentions and went through the materials on record.

6. The only point that arises for determination is whether on the basis of the evidence on record, one can conclude that wife / respondent herein was guilty of cruelty and desertion. The marriage between the parties had taken place on 06.02.2011. The marriage was admittedly consummated and the child was born in the same year. It was the appellant who sought the relief of divorce. He cannot be granted the said relief for the asking. The burden is on the appellant to prove that he had made out a case for dissolving the marriage. To do so, the appellant must show that his wife had committed one of the acts of misconduct set out in Section 13 of the Hindu Marriage Act, 1955. According to the appellant, his wife was guilty not one but two acts of misconduct. He would allege <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 that wife had treated him with cruelty and she is also guilty of desertion.

7. Let us take up the second ground first for consideration. Section 13(1)(ib) of the Hindu Marriage Act states that marriage can be dissolved at the instance of the petitioner if the respondent had deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petitioner.

8. It is well settled that the essence of desertion is forsaking and abandonment of one spouse by the other without reasonable cause and without consent or against the wish of the other. To prove this ground, one must establish that there was not only a factum of separation but also the intention to bring cohabitation permanently to an end.

9. In this case, the factum of separation has been established. But that alone is not sufficient. Animus or intention on the part of the wife must also be brought out. The appellant had marked as many as 15 exhibits on his side. Vide Ex.P8-legal notice dated 13.07.2020, the appellant had only demanded divorce by mutual consent. He had not <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 taken any steps for reunion.

10. On the other hand, the conduct of the respondent / wife is otherwise. She was originally transferred to the Government College, Karur from Trichy. She had been applying every year to the authorities for transferring her back to Trichy. Ex.R8 are the series of applications submitted by wife from the year 2014-15 to 2019-20. This shows that the wife wanted to save the marriage somehow. It was the wife who filed H.M.O.P.No.100 of 2020 for restitution of conjugal rights. A person who wants re-union cannot be said to be guilty of desertion. The act of filing a petition under Section 9 of the Hindu Marriage Act itself falsifies the allegations made by the appellant. The wife is employed in a Government job. Transfer is an incident of Government service. She was transferred from Trichy to Karur. There is nothing on record to show that transfer from Trichy to Karur was at her instance. This cannot be characterized as an act of desertion on the part of the wife. The matrimonial home may be at place "A". If the wife has to move to place "B" on the ground of transfer which is an incident of service, that cannot be labelled as an act of desertion on the part of the wife. The court below <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 after a careful consideration of the entire evidence on record rightly came to the conclusion that the ground of desertion alleged by the husband has not been established.

11. The other ground pleaded by the husband is that the respondent herein had treated him with cruelty. In support of the allegation, the appellant had referred to the following instances:-

A. she took back the seedhana articles. B. The respondent's parents did not extend the customary invitation to visit their house following the solemnization of marriage.

C. The respondent never lived with him. D. The appellant was unnecessarily dragged into a quarrel between the respondent and the neighbours of the respondent's family at the instance of the respondent. As a result, FIR was registered against him.

D. She refused to move into a rented house in Trichy. E. He was constantly humiliated by the family of the respondents.

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm)
C.M.A(MD) Nos.446 & 447 of 2022 F. On 02.10.2011, the petitioner and his family were not informed about the baby shower ceremony. On the day the child was born, the appellant's mother was not allowed to lift the child.

G. The appellant and his family were not even invited for the naming ceremony of the child.

H. She deliberately sought transfer to Karur without informing the appellant.

I. The respondent threatened to file a complaint under Domestic Violence Act against the appellant and his family members.

12. In support of the above allegations, the appellant examined himself and a relative by name Manavalan. The evidence of the relative (P.W.2) was found to be utterly worthless by the court below as he was unable even to state the name of his brother and sister-in-law. Therefore, the appellant's case rests exclusively on his evidence. The court below had analyzed the evidence on record meticulously and found that none of the allegations made by the appellant would hold good. For instance, <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 dealing with the allegation that his mother was not allowed to lift the child after birth, the court below noted that the child was a premature baby and was born with complications. It was therefore medically advised that except the mother, others should sanitize their hands and then only lift the baby. When the appellant's mother visited the hospital, this instruction was given to her. There is nothing to take amiss in this.

13. As regards failure to invite the appellant for baby shower ceremony, the appellant admitted that the function itself took place in the appellant's house only. Therefore, the court below concluded that his allegation that he was not invited was unbelievable and intrinsically improbable. There is also no merit in the appellant's claim that the respondent initially did not live with him. Admittedly, the marriage was consummated and a male child was also born in the very same year of marriage. The baby shower ceremony was also celebrated in the house of the appellant. Some

misunderstanding must have developed only in the year 2012 when the wife was transferred to Karur. We have already held that wife cannot be expected to give up her Government job and stay with the husband. The appellant knew about the government job of <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 the respondent even prior to marriage. He must have been aware of the possibility of transfer too. When a spouse has to pursue her career, she has to necessarily comply with the incidental obligations. Therefore, the husband and wife will have to balance these aspects and mutually respect each other. The appellant is not justified in blaming the wife for complying with the transfer order. Even though the appellant would claim that wife sought transfer to Karur, there is no material to prove the same.

14. Clinching evidences against the appellant are Ex.R12 & Ex.R13. Ex.R12 is the wedding invitation card of one R.W.3-Giritharan. In the invitation card, name of the appellant and the respondent have been mentioned as special invitees. Ex.R13 is the photograph taken on the occasion. The appellant and the respondent along with child are found with the couple. The fact that as late as 18.03.2018, the parties have been seen together indicates that the matters have not reached any breaking point. If according to the appellant, the respondent had treated him with cruelty, he would definitely not have joined to attend the wedding function. He would have also raised objection to including his <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 name along with that of the respondent. By this singular conduct, the appellant can be said to have condoned any lapse on the part of the respondent, if any.

15. The appellant had marked Ex.P5 voice recording purporting to prove to the court the words uttered by the respondent herein. The court below came to the conclusion that the said CD containing the recording has not been proved and refused to lend any credence to its contents. In any event, this dates back to the year 2012. Since the respondent had proved that they had gone to the wedding function together along with the child in marriage 2018, we do not want to attach any importance to the events that had taken place earlier. When the respondent is not at fault, it would be grossly unfair to dissolve the marriage at the instance of the appellant. The appellant had alleged in his petition that he is not able to reach out to his son and that her sons's mind has been poisoned by the respondent. We directed the parties to be present in person before us. When the son addressed the appellant as "Appa", the appellant did not even bother to respond. Even though we nudged the appellant to hold his son and talk to him affectionately, the appellant refused to do so. He was <https://www.mhc.tn.gov.in/judis> (Uploaded on: 11/03/2025 07:28:56 pm) C.M.A(MD) Nos.446 & 447 of 2022 constantly harping on the conduct of the respondent in seeking transfer behind his back. We therefore come to the conclusion that the allegations made in this regard are also without any substance.

16. The court below, after carefully considering and appreciating the entire evidence on record, had allowed the petition for restitution of conjugal rights and dismissed the petition for divorce. We are unable to take a different view.

17. Both the Civil Miscellaneous Petitions stand dismissed. No costs.

(G.R.S., J.)

Index : Yes / No
Internet : Yes / No
NCC : Yes / No
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To

The Family Court, Karur.

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